



Republic of the Philippines
CITY OF VALENZUELA
Metropolitan Manila

SANGGUNIANG PANLUNGSOD

*** Excerpts from the Minutes of the 12TH Regular Session of the 10th City Council of Valenzuela held on September 24, 2025 at 3:00 P.M. at the City Council's Session Hall, 3rd Floor, Legislative Building, Valenzuela City Hall, Karuhatan, Valenzuela City, Metropolitan Manila

ORDINANCE NO. 1289
Series of 2025

AN ORDINANCE DECLARING THE SECOND TUESDAY OF FEBRUARY OF EVERY YEAR AS THE ANTI-ONLINE SEXUAL ABUSE AND EXPLOITATION ON CHILDREN (OSAEC) DAY IN VALENZUELA CITY AND PROVIDING FUNDS FOR THE CELEBRATION THEREOF, THEREBY AMENDING SECTION 22 OF ORDINANCE NO. 1185, SERIES OF 2024 ENTITLED "AN ORDINANCE PROHIBITING ACTS OF ONLINE SEXUAL ABUSE AND EXPLOITATION OF CHILDREN (OSAEC) IN VALENZUELA CITY WITH CORRESPONDING PENALTIES, THEREAFTER PROVIDING A SUPPORTIVE ENVIRONMENT FOR THE SURVIVORS, AND PROVIDING FUNDS THEREOF".

Authored by : Coun. NIÑA SHIELA B. LOPEZ

Co-authored by: Vice Mayor MARLON PAULO C. ALEJANDRINO, Coun. CRISTINA MARIE FELICIANO-TAN, Coun. JOSEPH WILLIAM D. LEE, Coun. RICHARD C. ENRIQUEZ, Coun. WALTER MAGNUM D. DELA CRUZ, Coun. KISHA COLEEN R. ANCHETA, Coun. EXEQUIEL D. SERRANO, Coun. LORENA NATIVIDAD-BORJA, Coun. ROSELLE SABINO-SY, Coun. CHIQUI MARIE N. CARREON, Coun. CHRISTOFFER JOSEPH M. PINEDA, Coun. LOUIE P. NOLASCO, Coun. MARIO B. SAN ANDRES and Coun. JAIRUS JEOFRI P. ESPLANA.

WHEREAS, Section 9, Article II of the 1987 Constitution provides that the State shall promote a just and dynamic social order that will ensure the prosperity and independence of the nation and free the people from poverty through policies that provide adequate social services, promote full employment, a rising standard of living, and an improved quality of life for all;

WHEREAS, Section 3(2) of Article XV of the same law mandates the State to defend the right of children to assistance, including proper care and nutrition, and special protection from all forms of neglect, abuse, cruelty, exploitation, and other conditions prejudicial to their development;

WHEREAS, Republic Act No. 11930, otherwise known as the "Anti - Online Sexual Abuse or Exploitation of Children (OSAEC) and Child and Sexual Abuse or Exploitation Materials (CSAEM) Act" provides that it is the policy of the State to provide special protections to children from all forms of sexual violence, abuse and exploitation especially those committed with the use of information and communications technology (ICT), provide sanctions for their commission and carry out programs for the prevention, deterrence and intervention in all situations of online sexual abuse and exploitation of children



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in the digital and non-digital production, distribution or possession of child sexual abuse or exploitation material;

WHEREAS, Section 33 Republic Act No. 11930 requires local governments to pass an ordinance localizing the efforts against OSAEC and CSAEM, take account local culture and norms, institutionalize community-based initiatives that address OSAEC and CSAEM at the barangay level, establish OSAEC and CSAEM prevention programs that aim to educate families against OSAEC and CSAEM, and provide a holistic local program for rehabilitation and reintegration under the local social welfare and development office including support and protection for victims and survivors;

WHEREAS, on February 5, 2018, then President Rodrigo Roa Duterte issued Proclamation No. 417, declaring the second Tuesday of February of every year as "Safer Internet Day for Children in the Philippines";

WHEREAS, Republic Act 7160, otherwise known as the Local Government Code of 1991, states that:

"Section 16. General Welfare. - Every local government unit shall exercise the powers expressly granted, those necessarily implied therefrom, as well as powers necessary, appropriate, or incidental for its efficient and effective governance, and those which are essential to the promotion of the general welfare. Within their respective territorial jurisdictions, local government units shall ensure and support, among other things, the preservation and enrichment of culture, promote health and safety, enhance the right of the people to a balanced ecology, encourage and support the development of appropriate and self-reliant scientific and technological capabilities, improve public morals, enhance economic prosperity and social justice, promote full employment among their residents, maintain peace and order, and preserve the comfort and convenience of their inhabitants."

WHEREAS, on May 20, 2024, pursuant to the mandate of the aforementioned statute, the City of Valenzuela enacted City Ordinance No. 1185, Series of 2024, or "An Ordinance prohibiting acts of Online Sexual Abuse and Exploitation of Children (OSAEC) in Valenzuela City with corresponding penalties, thereafter providing a supportive environment for the survivors, and providing funds thereof";



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WHEREAS, Section 22 of the said Ordinance provides that as part of its established prevention and awareness program on OSAEC, the Local Government shall declare a day in September as "Anti-OSAEC Day" to increase awareness against the crime;

WHEREAS, the City Government of Valenzuela recognizes the need to raise awareness among its citizenry, as well as various stakeholders, about the real and present evils of OSAEC and CSAEM not only to the children and youth, but also to the society at-large. In this light, as part of our overall strive in curbing the ill-effects of OSAEC and CSAEM, preventive efforts through activities which maximize awareness raising, child-participation in planning and decision-making process of program formulation, development, and implementation, as well as other similar endeavors directed towards children and youth empowerment, are highly encouraged;

WHEREAS, the Mayor Weslie T. Gatchalian issued Executive Order No. 2025-185, Series of 2025, thereby creating a Special Action Committee (SAC) for the Local Committees, i.e., CCAT-VAWC and LCPC on matters involving Online Sexual Abuse and Exploitation of Children (OSAEC) and Child Sexual Abuse and Exploitation Materials (CSAEM) in Valenzuela City;

WHEREAS, on February 5, 2018, then President Rodrigo Roa Duterte issued Proclamation No. 417, declaring the second Tuesday of February of every year as "Safer Internet Day for Children in the Philippines";

WHEREAS, acting on the recommendation of the SAC, the Joint Committee on OSAEC/ CSAEM, on meeting held for the purpose last September 12, 2025, adopted Joint Council Resolution No. 01, Series of 2025, entitled "A RESOLUTION EXPRESSING THE COMMITTEE'S ENDORSEMENT AND SUPPORT IN MOVING THE CELEBRATION OF THE "ANTI-OSAEC DAY" IN VALENZUELA CITY TO THE SECOND TUESDAY OF FEBRUARY OF EVERY YEAR IN ORDER TO ALIGN THE FORMER WITH THE CELEBRATION OF THE "SAFER-INTERNET DAY FOR CHILDREN PHILIPPINES";

NOW, THEREFORE, be it **Ordained** as it is hereby **ORDAINED**, by the 10th City Council of Valenzuela, in session duly assembled:

SECTION 1. SHORT TITLE. – This ordinance shall be known as the "**ANTI-OSAEC DAY ORDINANCE**".



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SECTION 2. – DECLARATION OF POLICY; PURPOSE. – It shall be the policy of the City Government of Valenzuela to establish a robust prevention and awareness program involving all sectors in the community to combat OSAEC/CSAEM.

SECTION 3. DEFINITION OF TERMS. – As used in this Ordinance, the term:

- a. **Child/ Children** - Child refers to a person below eighteen (18) years of age or those over but are unable to fully take care of themselves or protect themselves from abuse, neglect, cruelty, exploitation or discrimination because of physical, mental, intellectual or sensory disability or condition. For purposes of this Act, a child shall also refer to:
 - (1) A person regardless of age who is presented, depicted or portrayed as a child as defined herein; and
 - (2) Computer-generated, digitally or manually crafted images, or graphics of a person who is represented or who is made to appear to be a child as defined herein;
- b. **"Child Sexual Abuse"** – Child sexual abuse refers to any form of communication through any platform or format, or any physical interaction between a child and any person when the child is being used for any act or activity inducing sexual stimulation or for the purpose of sexual gratification or in pursuit of the desire to have carnal knowledge of the child, regardless of the gender of the perpetrator or the victim, or the consent of the victim (Republic Act No. 11930);
- c. **Child sexual abuse or exploitation material or child sexual abuse material (CSAEM/CSAM)** – refers to any representation, whether offline, or by, through or with the use of ICT, by means of visual, video, audio, written, or any combination thereof, by electronic, mechanical, digital, optical, magnetic or any other means, of a child engaged or involved in real or simulated sexual activities, or depicting acts of sexual abuse or exploitation of a child as a sexual object. It shall also include materials that focus on the genitalia or other private body parts of a child. For purposes of this Act, CSAEM may interchangeably be referred to as CSAM;



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d. **Child sexual exploitation** – refers to any of the following acts even if consent appears to have been granted by the child:

- (1) Child sexual abuse with consideration whether monetary or nonmonetary consideration, favor, or benefit in exchange for the opportunity to perform such abusive or exploitative act
- (2) Actual sexual intercourse with a child or children with or without consideration;
- (3) Employing fraud, machination, undue influence, intimidation, threat or deception by any person to commit sexual abuse of or sexual intercourse with a child or children; or
- (4) Any other similar or analogous acts related to child abuse, cruelty or exploitation or to be responsible for other conditions prejudicial to the development of the child;

e. **Information and communications technology (ICT)** – refers to the totality of electronic means to access, create, collect, store, process, receive, transmit, present and disseminate information;

f. **Online sexual abuse or exploitation of children (OSAEC)** – refers to the use of ICT as a means to abuse and/or exploit children sexually, which includes cases in which offline child abuse and/or exploitation is combined with an online component. This can also include, but is not limited to, the production, dissemination and possession of CSAEM; online grooming of children for sexual purposes; sexual extortion of children, sharing image-based sexual abuse; commercial sexual exploitation of children; exploitation of children through online prostitution; and live-streaming of sexual abuse, with or without the consent of the victim: *Provided, That* OSAEC may be used interchangeably with online child sexual exploitation or abuse (OCSEA);

g. "Safer Internet Day," is celebrated annually as a call to action to promote better and safer internet use for everyone, was first introduced in 2004 in various countries in Europe and is currently being observed by more than 100 countries in the world to raise awareness on online issues faced by children;

SECTION 4. DECLARATION OF ANTI-OSAEC/CSAEM AWARENESS DAY IN VALENZUELA CITY. – Pursuant to Section 22 of Valenzuela City



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Ordinance No. 1185, the second Tuesday of the month of February of every year is hereby being declared as the ANTI-OSAEC/CSAEM DAY IN VALENZUELA CITY.

SECTION 5. PROGRAMS AND ACTIVITIES. – In line with this declaration, the City Government of Valenzuela shall formulate and design the appropriate programs and activities for the celebration of the “Anti-OSAEC Day” in Valenzuela City.

SECTION 6. IMPLEMENTING AUTHORITY. – The City Social Welfare and Development Office (CSWDO), through the Valenzuela City Child Protection Center (VCCPC), with the utmost support from the member-offices of the Local Council on the Protection of Children (LCPC) and City Council Against Trafficking – Violence Against Women and their Children (CCAT-VAWC), respectively, shall be in charge of implementation of the provisions of this Ordinance.

SECTION 7. APPROPRIATION. – The funding necessary for the implementation of this ordinance shall be included in the general appropriations of the City Government annually.

SECTION 8. SEPARABILITY CLAUSE. – If any part or provision of this Ordinance is declared unconstitutional or invalid, other parts or provisions thereof which are not affected thereby shall remain valid and continue to remain in force and effect.

SECTION 9. REPEALING CLAUSE. – All ordinances, local issuances or implementing rules, or any part thereof inconsistent with this Ordinance are hereby revoked, repealed, amended or modified accordingly.

SECTION 10. EFFECTIVITY CLAUSE. – This Ordinance shall take effect upon approval and compliance with the mandatory posting and publication requirements prescribed under the Local Government Code.

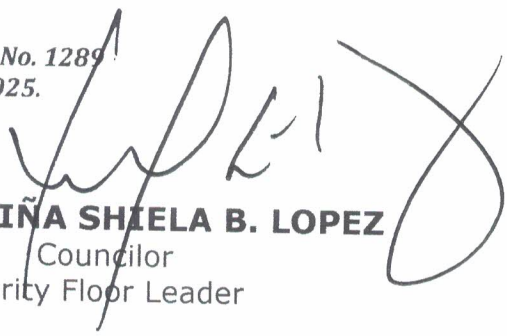
ENACTED.
SEPTEMBER 24, 2025
VALENZUELA CITY, METROPOLITAN MANILA.



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HON. NIÑA SHIELA B. LOPEZ
Councilor
Majority Floor Leader

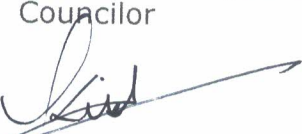

HON. JOSEPH WILLIAM D. LEE
Councilor
Minority Floor Leader

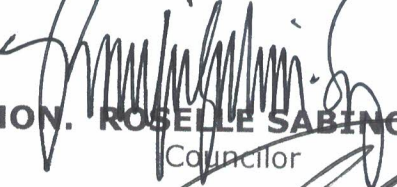

HON. WALTER MAGNUM D. DELA CRUZ
Councilor
Asst. Majority Floor Leader


HON. LOUIE P. NOLASCO
Councilor
Asst. Minority Floor Leader


HON. CRISTINA MARIE FELICIANO-TAN
Councilor


HON. LORENA C. NATIVIDAD-BORJA
Councilor


HON. RICHARD C. ENRIQUEZ
Councilor


HON. ROSELLE SABINO-SY
Councilor


HON. KISHA COLEEN R. ANCHETA
Councilor


HON. CHIQUI MARIE N. CARREON
Councilor

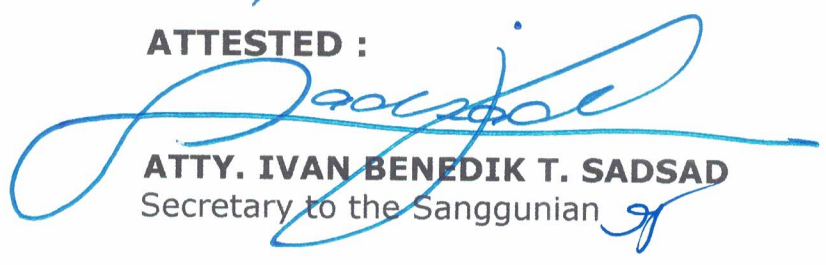

HON. EXEQUIEL D. SERRANO
Councilor


HON. CHRISTOFFER JOSEPH M. PINEDA
Councilor


HON. MARIO B. SAN ANDRES
Councilor
(President, League of Barangays)


HON. JAIRUS JEOFRI P. ESPLANA
Councilor
(President, Sangguniang Kabataan Federation)

ATTESTED :


ATTY. IVAN BENEDIK T. SADSAD
Secretary to the Sanggunian



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CERTIFIED CORRECT:

HON. MARLON PAULO C. ALEJANDRINO

City Vice Mayor
Presiding Officer

APPROVED:

HON. WESLIE T. GATCHALIAN

City Mayor

Date signed : 07 OCT 2025